

Record of Beneficiary Vote

Record of Beneficiary Vote for Election of Successor Trustees

Flanagan Family 321 Trust

Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)

Deed Reference: TR 31 PG 07 PC 10

Settlor: Dorothy E. Flanagan (deceased), Ellsworth, Maine

Date of Trust Agreement: 2005

I. Purpose of Vote

Pursuant to Article 10.2 of the Flanagan Family 321 Trust Agreement, upon the resignation of

This vote is conducted to elect Successor Co-Trustees to replace the resigning initial Co-Tr

II. Eligible Voters

Article 10.2 requires a majority vote of the beneficiaries. The Settlor's five (5) living ch

1. Mary Jean Foss
2. John M. Flanagan
3. Jane E Birckhead
4. Elizabeth Mary Young
5. Christopher J. Flanagan

A majority requires at least three (3) of the five (5) eligible beneficiaries to vote in fav

III. Nominees for Successor Co-Trustees

The following individuals have been nominated to serve as Successor Co-Trustees of the Flana

John M. Flanagan
Christopher J. Flanagan

IV. Date and Method of Vote

Date of Vote: _____, 2026

Method: (check one)

- ☐ In person
- ☐ By telephone conference
- ☐ By written ballot (mail or email)
- ☐ Combination of methods

V. Record of Individual Votes

Each beneficiary's vote is recorded below. A vote of "In Favor" indicates approval of both J

1. Mary Jean Foss

Vote: ☐ In Favor ☐ Opposed ☐ Abstain

Signature: _____

Date: _____

2. John M. Flanagan

Vote: ☐ In Favor ☐ Opposed ☐ Abstain

Signature: _____

Date: _____

3. Jane E Birckhead

Vote: ☐ In Favor ☐ Opposed ☐ Abstain

Signature: _____

Date: _____

4. Elizabeth Mary Young

Vote: ☐ In Favor ☐ Opposed ☐ Abstain

Signature: _____

Date: _____

5. Christopher J. Flanagan

Vote: ☐ In Favor ☐ Opposed ☐ Abstain

Signature: _____

Date: _____

VI. Results

Total In Favor: _____

Total Opposed: _____

Total Abstain: _____

Majority Required: 3 of 5

Result: (check one)

☐ APPROVED -- A majority of the beneficiaries have elected John M. Flanagan and Christopher J. Flanagan as Successor Co-Trustees of the Flanagan Family 321 Trust, effective upon their acceptance below.

☐ NOT APPROVED -- The nomination did not receive the required majority.

VII. Acceptance by Successor Co-Trustees

We, the undersigned, having been duly elected by a majority of the beneficiaries pursuant to

John M. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Address: _____

Christopher J. Flanagan, Successor Co-Trustee

Signature: -----

Date: -----

Address: -----

VIII. Certification

I certify that this Record of Beneficiary Vote accurately reflects the vote conducted on ____

Certified by: -----

Print Name: -----

Date: -----

IX. Supporting Documents

The following documents are attached to or accompany this Record of Vote:

1. Resignation of Trustee -- Jane E Birckhead (dated -----)
2. Resignation of Trustee -- Elizabeth Mary Young (dated -----)
3. Copy of the Flanagan Family 321 Trust Agreement (2005)
4. Notice of Vote sent to all beneficiaries (dated -----)

X. Notary Acknowledgement

STATE OF -----

COUNTY OF -----

On _____, 2026, before me, _____ (Notary Public), pers

I certify under PENALTY OF PERJURY under the laws of the State of _____ that

WITNESS my hand and official seal.

Signature: _____ (Seal)

My Commission Expires: _____